

THE SIND RENTED PREMISES ORDINANCE, 1979

(SIND ORDINANCE NO. XVII OF 1979)

Amendment up-to-date

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SIND ORDINANCE No. XVII OF 1979

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THE SIND RENTED PREMISES ORDINANCE, 1979

(SIND ORDINANCE NO. XVII OF 1979)

[21st November, 1979]

An Ordinance to make effective provisions for regulation of relations between landlords

and tenants and protect their interests in respect of rented premises within urban areas.

Preamble. WHEREAS it is expedient to make effective provisions for regulation of relations between landlords and tenants and protect their interests in respect of rented premises within urban areas;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977 and

the Laws (Continuance in Force) Order, 1977, the Governor of Sind is pleased to make and

promulgate the following Ordinance: -

1. Short title and commencement. (1) This Ordinance may be called the Sind Rented Premises Ordinance, 1979.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context, -

(a) "building" means any building or part thereof, together with all fittings and fixtures therein, if any, and include any garden, garage, out-house and open

space attached or appurtenant thereto;

(b) "Controller" means a Controller appointed under section 4 and includes a person working as Controller immediately before coming into force of this Ordinance;

(c) "fair rent" means the fair rent of any premises determined by the Controller under this Ordinance;

(d) "Government" means the Government of Sind;

(e) "land" means land or open space, not being agricultural land or land or open

space attached or appurtenant to any building;

(f) "landlord" means the owner of the premises and includes a person who is for

the time being authorized or entitled to receive rent in respect of such premises;

(g) "personal use" means the use of the premises by the owner thereof or his wife

(or husband), son or daughter;

(h) "premises" means a building or land, let out on rent, but does not include a hotel;

(i) "rent" includes water charges, electricity charges and such other charges

which are payable by the tenant but are unpaid; "tenant" means any person who undertakes or is bound to pay rent as consideration for the possession or

occupation of any premises by him or by any other person on his behalf and includes-

(i) any person who continues to be in possession or occupation of the premises

after the termination of his tenancy;

(ii) heirs of the tenant in possession or occupation of the premises after the

death of the tenant; and

(k) "urban area" means an area within the jurisdiction of a Town Committee,

Municipal Committee, Municipal Corporation or Metropolitan Corporation.

3. Applicability. (1) Notwithstanding anything contained in any law for the time

being force, all premises other than those owned or requisitioned under any law, by or on behalf

of the Federal Government or Provincial Government, situated within an urban area, shall be

subject to the provisions of this Ordinance:

1[*****]

(2) Government may, by notification, exclude any class of premises, or all premises in any area

from operation of all or any of the provisions of this Ordinance.

4. Controllers. (1) Government may appoint one or more Controllers in any district and if more than one Controller is appointed in the same district Government shall define

the local limits within which each of such Controllers shall exercise jurisdiction:

Provided that the Controllers working immediately before coming into force of this

Ordinance shall continue to exercise their respective territorial jurisdiction until it has been altered

by Government.

(2) No person shall be appointed as a Controller unless he has worked or, has been

working, as a Civil Judge or 2[***], for not less than three years.

3[(3***)]

5. Agreement between landlord and tenant. (1) The agreement by which a landlord lets out any premises to a tenant shall be in writing and if such agreement is not

1 In section 3, sub-section (1) proviso omitted vide Sind Ordinance No. IV of 1984, dated July 30, 1984.

2 In section 4 of its sub-section (2) words omitted vide Sindh Ordinance No. XIV of 2001. Dated April, 17, 2001

3 In Section 4 of its sub-section (3) omitted vide Sindh Ordinance No. XIV of 2001. Dated April, 17, 2001.

compulsorily registerable under any law for the time being in force, it shall be attested by, signing

by, and sealing with the seal of, the Controller within whose jurisdiction the premises is situate or, any Civil Judge or First-Class Magistrate.

(2) Where any agreement by which a landlord lets out any premises to a tenant is

compulsorily registerable under any law for the time being in force, a certified copy of the

registered deed and where the agreement is not so registerable, the original deed duly attested

under sub-section (1), shall be produced and accepted in proof of the relationship of the landlord

and tenant:

Provided that nothing in this section shall affect any agreement between the landlord and

tenant immediately before coming into force of this Ordinance.

4[6. Omitted]

7. Higher rent not chargeable. No landlord shall charge or receive rent in respect of any premises at the rate higher than that mutually agreed upon by the parties, and, if the

fair rent has been fixed by the Controller in respect of such premises, at the rate higher than the

fair rent.

8. Fair rent. (1) The Controller shall, on application by the tenant or landlord

determine fair rent of the premises after taking into consideration the following factors: -

(a) the rent of similar premises situated in the similar circumstances, in the same

or adjoining locality;

(b) the rise in cost of construction and repair charges;

(c) the imposition of new taxes, if any, after commencement of the tenancy; and

(d) the annual value of the premises, if any, on which property tax is levied.

(2) Where any addition to, or improvement in, any premises has been made or any tax or other public charge has been levied, enhanced, reduced or withdrawn in respect thereof, or any fixtures such as lifts or electric or other fittings have been provided thereon subsequent to the determination of the fair rent of such premises, the fair rent shall, notwithstanding the provisions of section 9 be determined or, as the case may be, revised after taking such changes into consideration.

9. Limit of Fair rent. (1) Where the fair rent of any premises has been fixed no

4 Section 6 together with proviso omitted vide Sind Ordinance No. IV of 1984. Dated July 30, 1984.

further increase thereof shall be affected unless a period of three years has elapsed from the date of such fixation or commencement of this Ordinance whichever is later.

(2) The increase in rent shall not, in any case, exceed ten percent per annum on the existing rent.

10. Payment of rent. (1) The rent shall, in the absence of any date fixed in this

behalf by mutual agreement between the landlord and tenant, be paid not later than the tenth of the month next following the month for which it is due.

(2) The rent shall, as far as may be, be paid to the landlord, who shall acknowledge receipt thereof in writing.

(3) Where the landlord has refused or avoided to accept the rent, it may be sent to him by postal money order or, be deposited with the Controller within whose jurisdiction the premises is situate.

(4) The written acknowledgement, postal money order receipt or receipt of the Controller, as the case may be, shall be produced and accepted in proof of the payment of the rent: Provided that nothing contained in this section shall apply in the cases pending before the Controllers on the commencement of this Ordinance.

11. Discontinuance amenities services. (1) No landlord shall discontinue or cause to be discontinued any service such as electricity, gas or water, except with the previous consent of the tenant or in compliance with the requisition of the concerned authority or after

obtaining the direction of the Controller in this behalf.

(2) Where the landlord has discontinued or caused to be discontinued any service in contravention of sub-section 1, the tenant may make an application to the Controller for restoration thereof.

(3) Where the Controller is, after making such inquiry as he deems fit, satisfied that the service has been discontinued without sufficient cause, he shall make an order directing the landlord to have the service restored within such period as may be specified in the order.

(4) Where the landlord has failed to comply with the order of the Controller made under sub-section (3), the Controller may take necessary steps to get the service restored and recover the costs of such restoration from the landlord.

(5) Where the landlord has contravened the provisions of sub-section (1), he shall be punished with simple imprisonment for a period not exceeding six months or with fine or with both.

12. Repairs. (1) Subject to the agreement, if the landlord fails to make such repairs or white-washing as may be necessary to keep the premises in proper shape, the Controller may, on application made to him by the tenant and after such inquiry as the Controller deems fit to make, direct that such repairs or whitewashing may be made by the tenant and the cost thereof may be deducted from the rent payable to the landlord.

(2) Where any authority empowered by a law for the time being in force has required the landlord to make such repairs within such period as may be specified by such authority and the landlord has made default in this behalf, such authority may require the tenant to make such repairs.

(3) Where the tenant has made the repairs as aforesaid the authority ordering the repairs shall, after due verification of the details of the expenditure incurred by the tenant, certify the cost of repairs and the tenant may thereupon deduct the amount so certified from the rent payable to the landlord.

13. Eviction. No tenant shall be evicted from the premises in his possession except in accordance with the provisions of this Ordinance.

14. Delivery of vacant possession. (1) Notwithstanding anything contained in this Ordinance or any other law for the time being in force, the landlord of a building who is a widow, or a minor whose both parents are dead or a salaried employee due to retire within the next six months or has retired or a person who is due to attain the age of sixty years within the next six months or has attained the age of sixty years, may, by notice in writing, inform the tenant that he or she needs the building for personal use and require him to deliver vacant possession of the building within such time as may be specified in the notice, not being earlier than two months from the receipt thereof:

5[Provided that nothing in this sub-section shall apply where the landlord has rented out the building after he has retired or attained the age of sixty years or, as the case may be, has become widow or orphan.]

(2) The landlord shall not be entitled to avail the benefit of sub-section (1) if he is in occupation of a building owned by him in any locality.

(3) Where the tenant has failed to deliver the possession of the building under sub-section

(1), the Controller shall, on application by the landlord in this behalf, order eviction of the tenant

from the building in a summary manner, by using such force as may be necessary.

6[(4) ****]

5 In section 14 for proviso to sub-section (1) substituted vide Sind Ordinance No. XII of 1980. Dated September 1, 1980.

6 The Sub-section (4) of Sect. 14 is omitted Vide Sind Ordinance No. II of 1980. Dated January 21, 1980.

15. Application Controller. (1) Where a landlord seeks to evict the tenant otherwise than in accordance with section 14, he shall make such application to the Controller.

(2) The Controller shall, make as an order directing the tenant to put the landlord in

possession of the premises within such period as may be specified in the order, if he is satisfied that—

7[(i) *****]

(ii) the tenant has failed to pay rent in respect of the premises in his possession within

fifteen days after the expiry of the period fixed by mutual agreement between the tenant and

landlord for payment of the rent, or in the absence of such agreement, within the sixty days after the rent has become due for payment 3[provided that where the application made by the landlord is on the sole ground mentioned in this clause and the tenant on the first day of hearing admits his liability to pay the rent claimed from him, the Controller shall, if he is satisfied that the tenant has not made such default on any previous occasion and the default is not exceeding six months, direct the tenant to pay all the rent claimed from him on or before the date to be fixed for the purpose and upon such payment, he shall reject the application;]

(iii) the tenant has, without the written consent of the landlord—

- (a) handed-over the possession of the premises to some other person;
- (b) used the premises for the purpose other than that for which it was let out;
- (c) infringed the conditions on which the premises was let out;
- (iv) the tenant has committed such acts as are likely to impair the material value or utility of the premises;
- (v) the tenant has indulged in such activities as are causing nuisance to the neighbors;
- (vi) the premises is required by the landlord for reconstruction or erection of a new building at the site and the landlord has obtained necessary sanction for such reconstruction or erection from the authority competent under any law for the time being in force to give such sanction; (vii) the landlord requires the premises in good faith for his own occupation or use or for the occupation or use of his spouse or any of his children.

(3) Where the landlord who has obtained the possession of the premises for the purpose of reconstruction of the building or erection of a new building, shall demolish the existing building within six months of the taking over of the possession of the premises or, as the case may be, commence the erection of the new building within two years of the taking over of the possession of the premises, and in case the landlord fails to demolish the building as aforesaid, the tenant shall be entitled to be put into possession of the premises and for that purpose he may apply to the Controller for an order in that behalf 8[and for the purpose he may apply to the Controller for an order in that behalf"]

7 The sub-clause 2(i), of section 15 the semi colon replaced with colon thereafter the proviso added vide Sindh Ordinance No. XIV of 2001. Dated April, 17, 2001

8 In section 15 of sub-section (3) words added Vide Sind Ordinance No. II of 1980. Dated January 21, 1980.

9[("4") Where the land-lord constructs the building as aforesaid the tenant who was evicted from the old building may, before the completion of new building and its occupation and the Controller shall make an order accordingly in respect of the area applied for or such smaller area, as considering the location and type of the new building and the needs of the tenant, the deems just and on payment of rent to be determined by him on the basis of rent of similar accommodation in the locality.]

10[15-A] 1 [("Penalty for use of premises other than personal use.) 11[Where the land-lord, who has obtained the possession of a building under section 14 or premises under clause (vii) of section 15, relets the building or premises to any person other than the previous tenant or puts it to a use other than personal use within one year of such possession- (i) (ii) he shall be punishable with fine which shall not exceed one year's rent of the building of the premises, as the case may be, payable immediately before the possession was so obtained. The tenant who has been evicted may apply to the Controller for an order directing that he shall be restored to possession of the building or the premises, as the case may be, and the Controller shall make an order accordingly."]

16. Arrears of Rent. (1) Where a case for eviction of the tenant has been filed, the Controller shall, on application by the landlord and after such summary inquiry as he deems fit to make, determine the arrears of the rent due and order the tenant to deposit the same within such period as the Controller may fix in his behalf and further direct the tenant to deposit monthly rent regularly on or before the tenth of every month, until final disposal of the 12[Provided that the Controller may direct that the arrears of rent approximate rent may be paid to the landlord through pay order, or by any other mode agreed to be the parties, or as directed by the Controller.]

(2) Where the tenant has failed to deposit the arrears of rent or to pay monthly rent under sub-section (1), his defence shall be struck off and the landlord shall be put into possession of the premises within such period as may be specified by the Controller in the order made in this behalf.

(3) Where the rent has been deposited under this section, it shall, subject to such order as the Controller may make in this behalf, be paid to the landlord at the conclusion of the case or on such earlier date as may be specified by the Controller.

17. Compensation for vexatious eviction. Where the Controller is satisfied that any application made by a landlord for eviction of the tenant is frivolous or vexatious he may direct that compensation not exceeding ten times the monthly rent be paid by such landlord to the

9 In section 15 new sub-section added vide Sind Ordinance No. IV of 1984. Dated July 30, 1984.

10 Section 15-A Inserted Vide Sind Ordinance No. II of 1980. Dated January 21, 1980.

11 Section 15-A substituted vide Sind Act No. IV of 1984. Dated July 30, 1984.

12 In section 16 after replacement of full stop by colon proviso added vide Sindh Ordinance No. XIV of 2001, dated April 17, 2001.
tenant.

18. Change ownership. Where the ownership of a premises in possession of the tenant has been transferred by sale, gift, inheritance or by such other mode, the new owner shall send an intimation of such transfer in writing by registered post to the tenant and the tenant shall not be deemed to have defaulted in payment of the rent for the purpose of clause (ii) of sub-section (2) of section 15, if the rent due is paid within thirty days from the date when the intimation should, in normal course, have reached the tenant.

19. Procedure. (1) Where an application other than the application under section 14 has been made to the Controller under this Ordinance, he shall, unless the application is summarily dismissed by him for reasons to be recorded, issue a notice to the respondent to file written reply, if any, within such period not exceeding fifteen days of the receipt of the notice.

(2) Where on the day fixed in the notice for the respondent to file written reply, it is found

that the notice has Compensation for vexatious eviction.
in been served but the respondent has failed to file his reply without any reasonable

excuse, the Controller may, proceed to make an ex parte order and after such order has been made

the Controller shall have no power to rescind such order.

(3) Where the respondent has filed the written reply, the Controller shall proceed to

receive evidence first of the applicant and his witnesses and then of the respondent and his witnesses.

(4) A party to a case under this Ordinance shall prove the evidence of his witness by

producing the affidavit of such witness a copy of which shall simultaneously be supplied to the

other party and such other party shall have the right to cross examine the witness on such affidavit

and if the witness has been cross examined the party producing the witness may reexamine him.

(5) The Controller shall, instead of formally framing issues arising between the parties,

state them briefly in the judgment and shall record findings on each such issue separately.

20. Power of Civil Court. (1) Subject to this Ordinance, the Controller and the

appellate authority shall, for the purpose of any case under this Ordinance, have powers of a Civil

Court under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of only the matters,

namely: -

(a) Summoning and enforcing the attendance of any person and examining him on Oath;

(b) Compelling production or discovery of documents;

(c) Inspecting the site; and

(d) Issuing commission for examination of witnesses or documents.

21. Appeal. (1) Any party aggrieved by an order, not being an interim order, made

by the Controller may, within thirty days of such order, prefer an appeal to the 13[District Judge

having Jurisdiction in the area where the premises in relation to which the order is passed].

14[(1-A). On such appeal being preferred, the District Judge may hear it himself, or refer it

for disposal to an Additional District Judge.

(1-B). The District Judge may recall an appeal referred to an Additional District Judge

and either hear it himself to refer it for disposal to another Additional District Judge.

(1-C). The appellate authority, may, at any stage of appeal attempt to effect a compromise between the parties.

(1-D). The appellate authority may, where it deems fit, before passing a final order allow the tenant to continue his tenancy subject to payment of enhanced rent fixed by the authority.

(1-E). On the application of a party and after notice to the other party and after hearing such of them as desire to be heard, or on its own motion without such notice-

(a) the appellate authority may at any stage withdraw any application pending with a Controller and transfer the same for disposal to any other Controller;

(b) the High Court may at any stage withdraw any appeal pending with any appellate authority and transfer the same for disposal to any other appellate authority competent to dispose of the same.".]

(2) The appellate authority may pending the final disposal of the appeal, grant injunction staying further proceedings or action on the order of the Controller: Provided that no injunction shall be granted if the appeal has been preferred from the order under section 14.

(3) The appellate authority shall, after perusing the record of the case and giving the parties an opportunity or being heard and, if necessary, after making such further enquiry either by himself or by the Controller, make an appropriate order, which shall be final.

15[21-A. All appeals filed under this Ordinance and pending in the High Court immediately before the commencement of the Sindh Rented Premises (Amendment) Ordinance, 2001, shall

13 In section 21 of its sub-section (1) words substituted vide Sindh Ordinance No. XIV of 2001. Dated April 17, 2001.

14 In section 21 of its sub-section (1) new sub-sections inserted vide Sindh Ordinance No. XIV of 2001. Dated April 17, 2001.

15 After section 21, new section inserted by vide Sindh Ordinance No. XIV of 2001. Dated April 17, 2001. stand transferred to the District Judge having jurisdiction as provided in sub-section (1) of section

21, of disposal:

Provided that the appeals as are fixed for judgments shall be disposed by the High Court.".]

16[22. 1 [Execution of orders.] Final order passed under this Ordinance shall be

executed by the Controller and all questions arising between parties and relating to the execution,

discharge or satisfaction the order shall be determined by the Controller and not by a separate suit.

Explanation: - In the execution proceedings relating to the order of ejectment, no payment,

compromise or agreement shall be valid unless such payment, compromise or agreement is made

before or with the permission of the authority passing the order."]

23. Judicial Proceedings. The Controller and the appellate authority shall be

deemed to be a Civil Court within the meaning of section 480 of the Code of Criminal Procedure,

1898 (Act V of 1898).

24. Cognizance offence. No Court shall take cognizance of an offence under this

Ordinance except upon complaint in writing made by the Controller.

25. Indemnity. No suit or legal proceedings shall lie against Government or any

authority or person in respect of anything done or intended to be done in good faith under this

Ordinance.

26. Rules. Government may make rules for carrying out the purposes of this Ordinance.

27. Repealed. (1) The Sind Urban Rent Restriction Ordinance, 1959, is hereby

repealed. (2) All appeals, and such cases before a Controller as are fixed for arguments or

judgment which have been filed under the Ordinance mentioned in

sub-section (1) shall,

notwithstanding the repeal thereof, be disposed in accordance with the said Ordinance.

17[(3) All other cases instituted under the Ordinance mentioned in sub-section (1) and

which immediately before the commencement of this Ordinance were pending before a Controller

shall, notwithstanding any orders made otherwise by the Controller, be continued and disposed in

accordance with the provisions of this Ordinance and any proceedings taken or order made in any

such cases as aforesaid shall for all purposes have effect as proceedings taken or orders made under

this Ordinance.

16 Section 22 substituted vide Sind Act No. I of 1986. Dated May 12, 1986.

17 In section 27, new sub-sections added Vide Sind Ordinance No. II of
1980. Dated January 21, 1980.

(4) Notwithstanding the provisions of sub-section (2) all orders made in
pursuance thereof

and any order made under the Ordinance mentioned in sub-section (1) in any
proceedings before

the commencement of this Ordinance shall be deemed to have effect as an
order under this

Ordinance and be executed in accordance with the provisions of section
22.]